

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	21CV378290	Brandon Feng v. Jack Cheng	Defendant moves this court to strike or in the alternative tax Plaintiff's Memorandum of Costs.. Defendant brought a cross complaint action against Plaintiff. The cross complaint was dismissed after Plaintiff was compensated by insurance. Plaintiff is the prevailing party under CCP 1032(a)(4). Defendant's motion is to strike or the alternative tax Plaintiff's Memorandum of Costs is DENIED..
9:00 2	23CV422193	Menchaca v. Chong-Flores	Defendant moves this court for summary judgment against Plaintiff's allegation of motor vehicle negligence. Plaintiff filed no opposition to the motion. In fact, Plaintiff admits to riding a bicycle on the wrong side of the road at an unsafe speed causing a collision with Defendant's vehicle. Defendant's motion is GRANTED.
9:00 3	24CV446086	Sandra Diaz-Kelly, et.al. vs Flowers Baking Company of Modesto	See below.
9:00 4	24CV446086	City of San Jose vs. BM Macaw Group, Inc.	See below
9:00 5	25CV462013	Peoplepack, LLC vs Veterinary Medical Institute	Plaintiff files motion for leave to file first amended complaint. No opposition was filed. Plaintiff's motion for leave to file is GRANTED.
9:00 6	25CV462013	Lorraine Parker vs. Service Finance Company, LLC	Defendant petitions this court for relief from waiver of objections to discovery requests propounded by plaintiff. Defendant asserts an internal clerical error which led to the lack of response. Defendant subsequently responded to Plaintiff's requests. Defendant's motion is GRANTED.
9:00 7	25CV477342	Emily Narciso vs. Progressive Insurance Company	Plaintiff moves this court to quash subpoenas for medical records. Defendant's subpoenas request an overly broad search of almost all of Plaintiff's medical records. Plaintiff's motion is GRANTED.
9:00 8	25CV477483	Kyung Mo Kang vs Soung Woo Han	Plaintiff moves this court to deem request for admissions admitted. Plaintiff propounded interrogatories on Defendant who failed to respond. Defendant did not file objections to this motion. Plaintiff's motion is GRANTED. Plaintiff's motion for sanctions in the amount of \$2,200 is GRANTED.
9:00 9	25CV480314	Accelerated Inventory Management, LLC vs. Lynnard Barnes, et.al.	Defendant moves this court to preclude evidence pursuant to CCP 454. Defendant served a demand on Defendant for a bill of particulars indicating the accounting of their damages. Defendant failed to so provide. Defendant did not issue any objections to this motion. Defendant's motion to preclude evidence of amounts or accounting from Plaintiff is GRANTED.
9:00 10	26CV485544	Robert Urquhart vs. Cupertino Electric, Inc.	See Below.
9:00 11	26CV489118	Schuler vs. Sheets	Defendant moves this court to quash service. Plaintiff failed personally serve Defendant after only one attempt. Plaintiff did not file objections to this motion. Defendant's motion to quash is GRANTED.
9:01 3	25CV470532	The Dentist Insurance Company vs. Symmons Industries, Inc.	Plaintiff moves this court to allow service of Defendant through the Secretary of State's Office. Plaintiff has made numerous attempts to serve Defendant. Plaintiff's motion is GRANTED.

Calendar Line 3

Case Name: *Sandra Diaz-Kelly et al. v. Flowers Baking Co. of Modesto, LLC*

Case No.: 24CV434653

This is a negligence action. Defendant Flowers Baking Co. of Modesto, LLC (“Flowers Baking”) moves to strike punitive damages, the third cause of action, and the seventh cause of action from the first amended complaint (“FAC”) filed by plaintiffs Sandra Diaz-Kelly and Julian Kelly (together, “Plaintiffs”).

The court DENIES Flowers Baking’s motion to strike the “entirety of Page 8, 7th cause of action for gross negligence” and the “entirety of Page 6, 3rd cause of action for misclassification.” (See Notice of Flowers Baking’s Motion to Strike, p. 2:8-9.) Flowers Baking appears to be moving to strike two entire causes of action from the FAC. This is improper. A motion to strike is not a substitute for a demurrer and cannot duplicate one. (*Pierson v. Sharp Mem’l Hosp.* (1989) 216 Cal.App.3d 340, 342 “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is ground for general demurrer. A motion for judgment on the pleadings is made on the same grounds and decided on the same basis as a general demurrer . . .”], internal citation omitted.) Code of Civil Procedure section 436 “*does not authorize attacks on entire causes of action*, let alone entire pleadings.” (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528, internal citation omitted, emphasis added.) “Its purpose is to authorize the excision of superfluous or abusive allegations.” (*Ibid.*)

The court GRANTS Flowers Baking’s motion to strike punitive damages from page 3 of the FAC with 20 days’ leave to amend. First, to request punitive damages against a corporate entity, like Flowers Baking, a complaint must allege that an officer, director, or managing agent of the corporation was either personally responsible for the alleged conduct or that an officer, director,